

Tentative Rulings for July 1, 2026
Department 502

For any matter where an oral argument is requested and any party to the hearing desires a remote appearance, such request must be timely submitted to and approved by the hearing judge. In this department, the remote appearance will be conducted through Zoom. If approved, please provide the department's clerk a correct email address. (CRC 3.672, Fresno Sup.C. Local Rule 1.1.19)

There are no tentative rulings for the following cases. The hearing will go forward on these matters. If a person is under a court order to appear, he/she must do so. Otherwise, parties should appear unless they have notified the court that they will submit the matter without an appearance. (See California Rules of Court, rule 3.1304(c).) *The above rule also applies to cases listed in this "must appear" section.*

The court has continued the following cases. The deadlines for opposition and reply papers will remain the same as for the original hearing date.

24CECG01381 *Matthew Hill v. Kourtney Nuser* is continued to Tuesday, August 11, 2026, at 3:30 p.m. in Department 502.

25CECG01711 *Nelson Properties v. Affordable Roofing* is continued to Thursday, July 2, 2026, at 3:30 p.m. in Department 502.

(Tentative Rulings begin at the next page)

Tentative Rulings for Department 502

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Tentative Ruling

Re: **Wheeler v. Savala**
Superior Court Case No. 23CECG02412

Hearing Date: July 1, 2026 (Dept. 502)

Motion: (1) by Plaintiff to Dismiss
(2) by Plaintiff to Disqualify Counsel

**If oral argument is timely requested, it will be entertained on
Wednesday, July 15 2026, at 3:30 p.m. in Department 502.**

Tentative Ruling:

To deny the motion to dismiss the complaint and enter judgment against defendant.

To deny the motion to disqualify James Makasian as attorney for defendant.

Explanation:

Motion to Dismiss and Enter Judgment

Plaintiff moves to dismiss the instant action and have judgment entered in his favor on the basis that defendant failed to file separate proofs of service for unidentified motions.

The case at bench was dismissed by ex parte application on April 9, 2026 on the basis that plaintiff failed to timely file an amended complaint following the demurrer having been sustained to the operative complaint. (Cal. Rules of Court, rule 3.1320(g), (h).) To the extent plaintiff's motion can be interpreted as claiming his case was dismissed without notice of the motion this is not supported by the court's minute order showing he was present at the April 9, 2026 hearing on the ex parte application to dismiss the case.

In the event plaintiff's intention by way of this motion is to set aside the dismissal, plaintiff has provided no evidence to support such a motion. "The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc. § 473(b).) Relief can be based either on an "attorney affidavit of fault," in which event, relief is mandatory; or declarations or other evidence showing "mistake, inadvertence, surprise or 'excusable neglect,'" in which event relief is discretionary. (*Ibid.*) Plaintiff has provided no explanation as to how his action was dismissed by reason of mistake, inadvertence, surprise or excusable neglect. As discussed above, the plaintiff was present at the hearing on

defendant's ex parte application to dismiss the case pursuant to Rules of Court, Rule 3.1320(h) and cannot claim he had no notice of the hearing.

Accordingly, to the extent plaintiff's motion can be interpreted as a motion to set aside the dismissal entered with prejudice on April 9, 2026, the motion is denied.

Motion to Disqualify

"A trial court's authority to disqualify an attorney derives from the power inherent in every court '[t]o control in furtherance of justice, the conduct of its ministerial officers, and of all other persons in any manner connected with a judicial proceeding before it, in every matter pertaining thereto.' (Code Civ. Proc., § 128, subd. (a)(5); [citations].)" (*People ex rel. Dept. of Corporations v. Speedee Oil Change Systems, Inc.* (1999) 20 Cal.4th 1135, 1145.)

Motions to disqualify generally arise in one of two contexts: (1) in cases of successive representation, where an attorney seeks to represent a client with interests that are potentially adverse to a former client; and (2) in cases of simultaneous representation, where an attorney seeks to represent in a single action multiple parties with potentially adverse interests. (*Western Sugar Coop. v. Archer-Daniels-Midland Co.* (C.D. Cal. 2015) 98 F.Supp.3d 1074, 1080.) Successive representation implicates an attorney's duty of confidentiality. (*Flatt v. Superior Court* (1994) 9 Cal.4th 275, 283.) Simultaneous representation implicates an attorney's duty of loyalty. (*Id.* at p. 284.)

In the motion at bench, neither context is implicated. Plaintiff Shawn Wheeler, for a second time, moves to disqualify defendant Sylvia Savala's counsel, James Makasian, due to purported misconduct based on counsel and client previously having been married. Plaintiff cites to no authority, and the court is aware of none, to support his argument that a prior marital relationship between an attorney and client would constitute misconduct by the attorney or support the disqualification of counsel. The court does not intend to interfere with defendant's right to counsel of her choice in the absence of a conflict of interest.

The motion to disqualify Mr. Makasian as attorney for defendant is denied.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: Img **on** 6-29-26.
(Judge's initials) (Date)

(20)

Tentative Ruling

Re: ***Rogers v. Casares et al.***
Superior Court Case No. 22CECG00402

Hearing Date: July 1, 2026 (Dept. 502)

Motion: By K&K Property Management ("K&K") to Compel Initial Responses from Kristi Rogers to Requests for Production of Documents, Set Two, Form Interrogatories, Set Two, Special Interrogatories, Set Two, and Deemed Admissions re Requests for Admissions, Set One

By Kevin Christiansen ("Christiansen") to Compel Initial Responses from Kristi Rogers to Requests for Production of Documents, Set Two, Form Interrogatories, Set Two, Special Interrogatories, Set Two, and Deemed Admissions re Requests for Admissions, Set One

By K&K and Christiansen to Compel Deposition of Kristi Rogers

By K&K and Christiansen to Compel Deposition of Nicole Sherfield

By K&K to Compel Initial Responses from Nicole Sherfield to Requests for Production of Documents, Set Two, Form Interrogatories, Set Two, Special Interrogatories, Set Two, and Deemed Admissions re Requests for Admissions, Set One

By Christiansen to Compel Initial Responses from Nicole Sherfield to Requests for Production of Documents, Set Two, Form Interrogatories, Set Two, Special Interrogatories, Set Two, and Deemed Admissions re Requests for Admissions, Set One

**If oral argument is timely requested, it will be entertained on
Wednesday, July 15 2026, at 3:30 p.m. in Department 502.**

Tentative Ruling:

To grant. (Code Civ. Proc., §§ 2030.290, 2031.300, 2033.280.) Within 10 days, plaintiffs Kristi Rogers and Nicole Sherfield shall serve verified responses to Requests for Production of Documents, Set Two, Form Interrogatories, Set Two, Special Interrogatories, Set Two. All objections are waived. The truth of all matters specified in the Request for Admissions, Set One, are deemed admitted. (Code Civ. Proc., § 2033.280, subd. (b).) No sanctions are imposed on the motions to compel discovery responses or deemed admissions.

To grant the motions to compel deposition. Plaintiffs Kristi Rogers and Nicole Sherfield shall appear for deposition within 20 days of the hearing on this motion. (Code

Civ. Proc., §§ 2025.450, subd. (a), 2025.280, subd. (a).) To impose \$1,648.45 in monetary sanctions against Rogers and \$1,648.45 against Sherfield, in favor of moving parties K&K and Christiansen, to be paid to moving parties' counsel within 30 days of service of the order by the clerk.

Explanation:

On November 20, 2025 moving parties served on plaintiffs Kristi Rogers and Nicole Sherfield ("plaintiffs") the above-referenced discovery requests. To date no responses have been served. Moving parties now move for an order compelling responses to the interrogatories and production demand, and a deemed admissions order as to the requests for admission.

Since no responses have been served, and the response deadline has passed, an order compelling plaintiffs to provide initial responses to the interrogatories and production demand without objections (Code Civ. Proc., § 2030.290, subd. (a), 2031.300, subd. (a)), and ordering admitted all matters specified in the requests for admission (Code Civ. Proc., § 2033.280, subd. (b)), is warranted, and reasonable sanctions must be imposed (Code Civ. Proc., §§ 2023.010, subd. (d), 2023.030, subd. (a); *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 404). No sanctions are imposed on these motions, however, as the motions give no notice of the amount of sanctions, and moving parties provide the court with no information regarding the expense incurred in making the motions. With respect to the requests for admissions, this will be the order of the court unless plaintiffs serve, before the hearing on the motion, proposed responses that are in substantial compliance with Code of Civil Procedure section 2033.220.

Where a party fails to appear at a properly noticed deposition, and no valid objection under section 2025.410 has been served, the party giving the notice may move for an order compelling the deponent's attendance and testimony. (Code Civ. Proc., § 2025.450, subd. (a).) Defendants' motions are supported by evidence of the subject deposition notices served on plaintiffs and their failure to appear. Plaintiffs did not serve objection to the deposition notices or oppose these motions, despite proper service of each. Therefore, the motions to compel deposition are granted, and reasonable sanctions imposed. Only \$1,648.45 in sanctions is imposed on each motion to compel deposition, as that is the only information provided to the court.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: Img on 6-29-26.
(Judge's initials) (Date)

(34)

Tentative Ruling

Re: **Corral v. Webull Financial**
Superior Court Case No. 24CECG01122

Hearing Date: July 1, 2026 (Dept. 502)

Motion: by Defendant for Judgment on the Pleadings

If oral argument is timely requested, it will be entertained on Wednesday, July 15 2026, at 3:30 p.m. in Department 502.

Tentative Ruling:

To continue the hearing to August 11, 2026 at 3:30 p.m. in Department 502. Defendant to file a proof of service of the moving papers to plaintiff's new address by July 10, 2026. The deadlines to file opposition and reply shall be based on the new hearing date of August 11, 2026.

Explanation:

The court received a letter indicating plaintiff's address is now California Men's Colony State Prison, PO Box 8101, CDC 6288, San Luis Obispo, CA 93409-8010. It is unclear from the letter when the plaintiff's address changed or whether defendant was provided notice of the change of address. In order to ensure plaintiff has the opportunity to review and oppose defendant's Motion for Judgment on the Pleadings, the hearing on the motion is continued to August 11, 2026 for defendant to serve plaintiff at his current address. The deadlines for opposition and reply shall be based on the new hearing date.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: Img on 6-29-26
(Judge's initials) (Date)

(47)

Tentative Ruling

Re: **See Thao v. American Honda Motor Co., Inc.**
Case No. 24CECG05411

Hearing Date: July 1, 2026 (Dept. 502)

Motion: Defendant, American Honda Motor Co., Inc.'s Motion to Strike/Tax Costs

If oral argument is timely requested, it will be entertained on Wednesday, July 15 2026, at 3:30 p.m. in Department 502.

Tentative Ruling:

To grant American Honda Motor Co., Inc.'s motion in part. Specifically, the Court reduces the amount of costs plaintiffs are entitled to recover by \$79.50.

Accordingly, plaintiffs are entitled to recover \$716.90 in costs.

Explanation:

Plaintiffs, See Kong and Myko Thao ("Thao" or "plaintiffs") filed a memorandum of costs on January 21, 2026, in the amount of \$796.40. Defendant, American Honda Motor Co., Inc., ("AHM" or "defendant") makes this motion to tax and/or strike Thao's costs by \$261.90, as follows:

- (1) \$11.90 for filing and motion fees, claimed under Item 1;
- (2) \$150.00 for jury fees, claimed under Item 2;
- (3) \$79.50 in service of process costs, claimed under Item 5; and
- (4) \$20.50 in electronic filing/service fees, claimed under Item 14.

Civil Code section 1794, subdivision (d) provides that the prevailing party in an action that arises out of the Song-Beverly Consumer Warranty Act is entitled to fees that were reasonably incurred:

"If the buyer prevails under this section, the buyer shall be allowed by the Court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action."

Under Civil Code section 1794, subdivision (d), the inclusion of the word "expenses" includes expenses beyond those enumerated under Code of Civil Procedure section 1035.5. (*Jensen v. BMW of North America* (1995) 35 Cal.App.4th 112, 137-138.)

Filing Fees

AHM seeks to tax \$34.40 in filing fees. These fees are comprised of "\$5.95 for filing a Notice of Settlement on May 19, 2025, and \$5.95 for filing a Declaration on October 23, 2025. Item 14 lists corresponding charges for electronic filing/service for \$10.25 for the Notice of Settlement and \$10.25 for the Declaration, respectively." (AHM's Moving Papers, pg. 3:12-15.)

AHM argues that Code of Civil Procedure section 1794, subdivision (d) does not apply because these "costs [were] incurred after settlement of this matter were only incurred toward recovery of Plaintiffs' attorneys' fees and costs, and not in the commencement or prosecution of the action." (AHM's Moving Papers, pg. 3:17-19.)

The Court disagrees with AHM's narrow reading of Code of Civil Procedure section 1794, subdivision (d). All actions need to be resolved; all litigation must end. Under these circumstances, informing the Court that this action was coming to an end through a settlement, is part of the "prosecution of the action" as per Code of Civil Procedure section 1794, subdivision (d).

Accordingly, the Court denies AHM's motion to tax \$34.40 in filing fees.

Jury Fees

AHM seeks to strike the \$150 jury fee deposit Thao made. AHM initially argued that Thao is not entitled to those fees because no jury trial occurred. (AHM's Moving Papers, pps. 3:24-4:2.) Thao responded that the jury deposit was necessary in order to preserve Thao's Constitutional rights to a jury. (Thao's Opposition Papers, pg. 4:17-22.) Furthermore, jury fees themselves are recoverable under Code of Civil Procedure section 1033.5, subdivision (a)(1).

AHM did not dispute Thao's right to a jury trial, but for the first time on reply, argued that the jury fees could have been refundable under Code of Civil Procedure section 631.3, subdivision (a). (AHM's Reply Papers, pg. 5:1-19.) Because AHM's argument about the applicability of Code of Civil Procedure section 631.3, subdivision (a) was not made in AHM's moving papers, the Court will not consider arguments (or evidence) presented for the first time in a reply. (*SCI California Funeral Services, Inc. v. Five Bridges Foundation* (2012) 203 Cal.App.4th 549, 572 FN 18.)

Accordingly, the Court denies AHM's motion to tax \$150.00 in jury fees.

Service of Process Costs

AHM seeks to tax "\$79.50 in costs to serve a deposition subpoena and witness fee letter on a third-party independent dealership. This deposition did not occur because it was unilaterally noticed without any meet and confer effort. Plaintiffs have not provided any evidence or explanation to show why it was reasonable and necessary to serve process on this entity. No representative of the dealership was deposed or testified as a witness at a trial. There was no reason to incur this cost." (AHM's Moving Papers, pg. 4:6-10.)

Thao argues that the deposition subpoena was “not [a] random discretionary step[] but reasonable and necessary procedural action[] for the successful prosecution of this lawsuit.” (“Thao’s Opposition Papers, pg. 4:24-25.)

Under these circumstances, Thao fails to explain how serving the subpoena unilaterally, without any attempt to meet and confer as per usual in Song-Beverly litigation, was reasonable and necessary. Furthermore, *Seeever v. Copley Press, Inc.* (2006) 141 Cal.App.4th 1550, 1557 is distinguishable where the depositions took place, but not used at trial.

Accordingly, the Court grants AHM's motion to tax \$79.50 in costs to serve a deposition subpoena and witness fee letter on a third-party independent dealership.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: img on 6-29-26
(Judge's initials) (Date)

(49)

Tentative Ruling

Re: ***Pompa v. Piazza Del Pane, Inc. et al.***
Superior Court Case No. 24CECG03272

Hearing Date: July 1, 2026 (Dept. 502)

Motion: By Plaintiff Vanessa Pompa on Motion for Dismissal of Entire Action

If oral argument is timely requested, it will be entertained on Wednesday, July 15 2026, at 3:30 p.m. in Department 502.

Tentative Ruling:

To deny, without prejudice. (Lab. Code, § 2699.)

Explanation:

Plaintiff Vanessa Pompa ("Plaintiff") requests the permission of the court to dismiss the entire action, without prejudice, against Piazza Del Pane, Inc. ("Defendant") pursuant to Labor Code section 2699, subdivision (s). Plaintiff must seek permission of the court because the action was filed under the Private Attorney General Act ("PAGA") which requires court approval for actions such as this. The approval requirements legislated into PAGA are intended to "'afford ... protection to employees and the state whose interests are being represented by PAGA litigants.'" [Citation]" (*Turrieta v. Lyft, Inc.* (2024) 16 Cal.5th 664, 695.)

On July 31, 2024, the case was filed. On October 3, 2024 Plaintiff stipulated to enter Plaintiff's individual claims into arbitration. (Emran Decl., ¶ 5.) Sometime after November 1, 2024, Plaintiff litigated and reached a settlement with Defendant on Plaintiff's individual claims. (*Id.*, ¶¶ 6-7.) Plaintiff intended to attach the settlement agreement as Exhibit A to the Emran Declaration. (*Id.*, ¶ 7) However, Exhibit A was not attached to the Emran Declaration. A copy of the settlement agreement between Plaintiff and Defendant is not in evidence.

Plaintiff has not provided a reason for the request other than that a private settlement occurred on claims independent from the PAGA claim. In Plaintiff's PAGA claim, Plaintiff is acting on behalf of the state and other employees' interests. Plaintiff suggests that dismissal without prejudice would not prejudice claims by the state or other employees. However, the statute of limitations has run. Actions brought under Labor Code section 2699 have a one year statute of limitations. (Lab. Code, § 2699, subd. (c)(1); Code Civ. Proc., § 340.) Therefore, dismissal of the case with or without prejudice would bar other employees from filing a case for injuries that occurred during the same period of time.

Plaintiff makes no other claims or statements about how dismissal or any other actions taken by Plaintiff serve the interests of the state or other employees. Without a

statement of how dismissal would be in the state or other employees' interests, or a valid reason why, the court, in its discretion, cannot grant dismissal. Accordingly, the motion to dismiss the entire action is denied without prejudice.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: img on 6-30-26.
(Judge's initials) (Date)